NEW YORK STATE OF OPPORTUNITY.
Homes and Community Renewal
Office of Rent Administration

FACT SHEET # 20

Special Rights of Disabled Persons

3 PAGES

Introduction - Rights for Disabled Persons

The law grants certain protections for disabled persons who occupy rent regulated housing with regards to protection from eviction and exemption from rent increases. These protections are described below.

Eviction Protections for Disabled Tenants

1. An owner cannot evict a disabled tenant or the spouse of a disabled tenant from rent stabilized apartments in New York City (NYC) for the purpose of owner occupancy unless the owner provides an equivalent or superior apartment at the same or lower rent in an area near the tenant's present apartment.

2. An owner cannot evict a disabled tenant from rent stabilized apartments outside NYC and rent controlled apartments statewide for purposes of owner occupancy.

For the purposes of these protections, disabled persons are tenants and/or spouses of tenants who have an impairment resulting from anatomical, physiological or psychological conditions demonstrable by medically acceptable clinical and laboratory diagnostic techniques that are expected to be permanent, and prevent the tenant from engaging in any substantial, gainful employment.

Rent Increase Protections for Disabled Tenants

A tenant may apply for a DISABILITY RENT INCREASE EXEMPTION (DRIE). To be eligible for DRIE, a tenant's total household income cannot exceed the income eligibility level, and more than 1/3 of the income must be paid toward rent. **As of July 1, 2026, the total household income eligibility limit for DRIE cannot exceed $75,000. Municipalities must pass a local law to adopt an increase to an amount at or below this limit.** The tenant must live in a rent regulated apartment and be a recipient (or former recipient, as described below) of benefits from any of the following programs:

a. Social Security Disability Insurance (SSDI) or Supplemental Security Income (SSI) under the Federal Social Security Act;

b. Disability Pension or Disability Compensation benefits as provided by the United States Department of Veteran Affairs; or

c. Medical Assistance benefits pursuant to NY State Social Law, and a former recipient of SSDI or SSI benefits.

If a tenant qualifies for this program, such tenant is exempt from:

1. Future rent guideline increases, Maximum Base Rent increases, increases based on the owner's economic hardship, or Major Capital Improvements. However, the tenant must pay

any additional security deposit that would be required as a result of these types of increases.

2. Rent reductions for DHCR approved electrical conversions to individual metering (direct or sub-metering), as per the Rent Code Amendments of 2014 (RCA 2014). The cost of electricity remains included in the rent until the DRIE recipient vacates. The owner is however, permitted to install electric conversion equipment in the apartment when it is occupied by the DRIE recipient.

DRIE in New York City

In NYC, the Department of Finance (DOF) administers the DRIE program.

For the purposes of qualifying for DRIE, a rent-regulated apartment includes apartments subject to rent stabilization, rent control, Mitchell-Lama regulations, and the New York City Department of Housing Preservation and Development's Division of Alternative Management Programs (DAMP).

To determine the current income eligibility level and apply for DRIE, the tenant of an NYC rent controlled or rent stabilized apartment may visit nyc.gov or call 311.

The applicant with a disability must be named on the lease for the rent-regulated or cooperative/condominium apartment (where the mortgage is or once was federally insured under Section 213 of the National Housing Act).

When a current beneficiary permanently leaves the household, a remaining family member may file a transfer application to determine continued eligibility.

NYC tenants receiving a DRIE may choose a one or two-year lease renewal. They may also carry this exemption from one apartment to another when moving, upon the proper application being made to the Department of Finance, DRIE Unit.

The aggregate disposable income (for all members of the household residing in the housing accommodation whose head of the household is a person with a disability) for the applicable income tax year cannot exceed the maximum income eligible for SSI benefits under federal law. However, an increase in SSI benefits which take effect after the eligibility date of DRIE benefits is not included in the aggregate disposable income.

DRIE - Outside New York City

In the counties outside of NYC covered by the Emergency Tenant Protection Act, the New York State Division of Housing and Community Renewal administers the DRIE program. DRIE is a local option and communities have different income eligibility limits and exemption allowances. To determine the income eligibility limits and exemption allowances of municipalities that have adopted DRIE, please see DHCR Form RTP-13I, Instructions for Senior Citizen or Disability Rent Increase Exemption Application.

To apply for DRIE, the tenant of the rent regulated apartment must read the instructions and file DHCR form RTP-13A, Application for Senior Citizen or Disability Rent Increase Exemption, with:

DHCR
District Rent Office
75 South Broadway
White Plains, New York 10601
(914) 948-4434
hcr.ny.gov

Tenants applying for a DRIE are required to choose a two-year renewal lease. Owners receive certificates for real estate tax payment. When a current beneficiary permanently leaves the household, a remaining family member may file a transfer application to determine continued eligibility.

Municipalities outside of New York City with a DRIE Program are listed below.

Nassau County

Town of North Hempstead

Westchester County

Village of Croton on Hudson
Village of Dobbs Ferry
Town of Greenburgh
Village of Hastings on Hudson
Village of Irvington
Village of Mamaroneck
City of Mount Vernon
City of New Rochelle
Village of Ossining
City of Rye
Village of Sleepy Hollow
City of White Plains
City of Yonkers

DHCR Services

The Central Office of the Office of Rent Administration at Gertz Plaza, 92-31 Union Hall Street, Jamaica, NY and the Borough and County Rent Offices are totally accessible buildings, including the bathroom facilities. Staff members at all Rent Offices are available to assist visually-impaired persons with forms and other printed materials. With advance notification, staff members can also provide assistance for tenants and owners with hearing impairments, or serious mobility problems. If a hearing-impaired person is a party or a witness at a hearing before the Division of Housing and Community Renewal (DHCR), DHCR will provide a signer to interpret the proceedings.

SOURCES

Real Property Tax Law Section 467-b
New York City Rent Stabilization Law Section 26-509

Rent Connect:
rent.hcr.ny.gov

Ask a question:
portal.hcr.ny.gov/app/ask

For translation help:
hcr.ny.gov/language-accessibility

Our website:
hcr.ny.gov/rent

To visit a Borough Rent Office, <u>by appointment only</u>, please contact:

QUEENS
92-31 Union Hall Street
6th Floor
Jamaica, NY 11433
718-482-4041

BROOKLYN
55 Hanson Place
6th Floor
Brooklyn, NY 11217
718-722-4778

UPPER MANHATTAN
163 W. 125th Street
5th Floor
New York, NY 10027
212-961-8930

LOWER MANHATTAN
25 Beaver Street
New York, NY 10004
212-480-6238

BRONX
1 Fordham Plaza
4th Floor
Bronx, NY 10458
718-430-0880

WESTCHESTER
75 South Broadway
3rd Floor
White Plains, NY 10601
914-948-4434